

At a Submitted Term of the Supreme Court
of the State of New York in and for the
County of Cortland at the Courthouse at
Cortland, New York, on August 6,
2025.

PRESENT: HON. EUGENE D. FAUGHNAN
Supreme Court Justice

STATE OF NEW YORK
SUPREME COURT : COUNTY OF CORTLAND

NABIH A. HAGE,
Plaintiff,

-vs-

DAVID MAYO, ZOYA MAYO,
GREEN NOTE CAPITAL PARTNERS, INC.,
MANOJ K. KUMAR, M.D., STEVEN RICHARD
DOLSON-TRUSTEE, JPMORGAN CHASE
BANK, N.A., DISCOVER BANK, AND
KEYBANK NATIONAL ASSOCIATION,

Defendants.

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF FORECLOSURE
AND SALE
Index No. EF24-4019

Mortgaged Premises:
Raphael Dr., Town of Cortlandville
Cortland County, New York
Tax Map No. 76.00-06-10.000

On the summons, complaint and notice of pendency of action containing all the particulars required to be stated therein duly filed in this action on November 26, 2024, and all proceedings thereon, and on reading and filing the affidavit of regularity of William J. Pomeroy, sworn to February 26, 2025, with the exhibits annexed thereto, showing that each of Defendants herein have been duly served with the summons and complaint in this action and have not served any answer to the complaint or otherwise appeared nor has their time to do so extended, except Defendant, Manoj K. Kumar, M.D., who appeared by his attorney, William J. Leberman, by Notice of Appearance dated December 13, 2024; and

Upon the Amended Order of Reference to Compute dated May 15, 2025, and entered May 21, 2025, a Referee was appointed to compute the amount due to Plaintiff upon the

POMEROY, ARMSTRONG
& CASULLO, LLP
16 Tompkins Street
P.O. Box 828
Cortland, New York 13045
(607) 756-7501



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COURT & TRUST
Brooke Kemak, County Clerk

note and mortgage set forth in the Complaint and to examine and report whether the mortgaged premises can be sold in parcels; and

Upon on reading and filing the report of William Hathaway, Esq., Referee, dated May 27, 2025, and filed June 3, 2025, showing that the sum of \$93,303.47 was due thereon as of May 27, 2025; and that the mortgaged premises should be sold in one parcel; and

Upon the affidavit of William J. Pomeroy, attorney for Plaintiff, sworn to June 11, 2025, in support of the motion and the costs of plaintiff dated June 11, 2025; and

Upon all the prior proceedings had herein;

NOW, on motion of Pomeroy, Armstrong & Casullo, LLP, attorneys for Plaintiff; it is

ORDERED, ADJUDGED AND DECREED that the motion be and the same is hereby granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be and the same is hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint, the expenses of sale, and the costs of this action as provided by the Real Property Actions and Proceeding Law, be sold within 90 days of the date of this judgment in one parcel at public auction at the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of William Hathaway, Esq., who is hereby appointed Referee for that purpose; that the said Referee give public notice accordance with RPAPL §231 in the *Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED that the foreclosure auction shall be scheduled and conducted in accordance with the Sixth Judicial District Foreclosure Auction Plan, a copy of which can be found at <http://ww2.nycourts.gov/foreclosure-information-31001>; and it is further

ORDERED, ADJUDGED AND DECREED that, by accepting this appointment, the Referee certifies that he is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment) and §36.2(d) ("Limitations on appointment based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for himself or paying funds to himself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assigns, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successor and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that, if the Referee does not conduct sale within 90 days of the date of judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of the sale the Referee shall accept a written bid from Plaintiff or Plaintiff's attorney, just as though Plaintiff were physically present to submit the bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute the Terms of Sale for the purchase of the property, and pay the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid,

unless the successful bidder is Plaintiff, in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IOLA or escrow account in his own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision I of section six-l of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his own name as Referee in said IOLA or escrow account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more -OR- in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to Plaintiff or its attorney the following:

Amount Due per Referee's Report \$93,303.47 with interest at the note rate from May 27, 2025, until date judgment is entered, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$1,930.28 adjudged to Plaintiff for costs and disbursements in this action (and if applicable, as taxed or calculated by the Clerk and inserted herein), with interest at the statutory judgment rate from the date of entry of this judgment;

Attorney Fees: \$5,270.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus Monies;

and it is further

ORDERED, ADJUDGED AND DECREED that if Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the amount due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment ~~against Jeffrey Calamia~~ in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show;

any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Supplemental Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale

without prior application to the Court unless Plaintiffs' attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as Raphael Drive, Town of Cortlandville, County of Cortland, New York, Tax Map No. 76.00-06-10.000.

Dated: Aug 6, 2025
C. Malone, New York

ENTER,



HON. EUGENE D. FAUGHNAN
Supreme Court Justice

9 Brooke Kemak



CJ-2025-01719
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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

At a term of the Supreme Court held in
the County of Cortland, at the
Courthouse thereof, on the 20th day
of August, 2023.

PRESENT: Hon. Mark G. Masler, Justice Presiding

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X

CFCU COMMUNITY CREDIT UNION,

Plaintiff,

v.

DESIREE N. HYDE n/k/a DESIREE N.
WILLIS,

Defendant.

INDEX NO.: EF23-421

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:

1961 Maxfield Road
Cortland, NY 13045
SBL #: 67.00-05-06.000

-----X

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the
31st day of July, 2023, the Notice of Motion dated December 23, 2024, the affirmation by
Samuel M. Blakley, Esq. dated December 23, 2024, the affirmation in support of
attorney's fees dated December 23, 2024, together with the exhibits annexed thereto, all
in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that the defendant herein has been duly served with the Summons
and Complaint, and has not served any answer to the Complaint or otherwise appeared,
nor has her time to do so extended; and it appearing that more than the legally required
number of days has elapsed since Defendant Desiree N. Hyde n/k/a Desiree N. Willis
was so served and/or appeared; and Plaintiff having established to the Court's
satisfaction that a judgment against defendant is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3); and

UPON proof that non-appearing Defendant Desiree N. Hyde n/k/a Desiree N. Willis is not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Amended Report of Patrick M. Snyder, Esq. dated October 1, 2024 December 4, 2024, showing the **secured sum of \$39,825.49** due as of ~~the date of said Report~~ and that the mortgaged property may not be sold in parcels; and

UPON reading and filing the Amended Report of Patrick M. Snyder, Esq. dated October 1, 2024 December 4, 2024, showing the **unsecured sum of \$18,186.65** due as of ~~the date of said Report~~ that is **not secured** by the Mortgage; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Samuel M. Blakley, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED, AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED, AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in

one parcel, in accordance with the Terms of Sale and Foreclosure Auction Plan annexed hereto, at a public auction at the **Cortland County Courthouse located at 46 Greenbush Street, Cortland, New York 13045** by and under the direction of **Patrick M. Snyder, Esq. of 70 Port Watson Street, Cortland, New York 13045**, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in the **Cortland Standard**; and it is further

ORDERED, ADJUDGED, AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon

as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IOLTA or escrow account ~~(name of depository)~~ In his/her own name as *Man* Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED, AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than

30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in

said TOLA or escrow account (name of depository), and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more ~~OR~~ *In the event a sale was cancelled or postponed,* Plaintiff shall compensate the Referee in the sum of \$ 250 for

each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Secured Amount Due per Referee's Report: \$39,825.49 with interest at the present note rate of 14.00%, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of

this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,095.60 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 3,400 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting

the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED, AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED, AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against **Defendant Desiree N. Hyde n/k/a Deslree N. Willis** in accordance with RPAPL §1371 **only if permitted by law and her liability not discharged by bankruptcy**; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of

sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED, AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED, AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED, AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED, AND DECREED that the Plaintiff may make an application for Surplus Monies, if any, pursuant to RPAPL §1361 regarding those amounts due under the Note but not secured by the Mortgage; and it is further

ORDERED, ADJUDGED, AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED, AND DECREED that Plaintiff shall serve a copy of this

Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED, AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED, AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED, AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 1961 Maxfield Road in the Town of Homer, County of Cortland, State of New York, Tax Map No. 67.00-05-06.000.

DATED: August ²⁰, 2025
Cortland, New York

ENTER:



HON. MARK G. MASLER
Supreme Court Justice



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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale,

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	TiogaSupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At a Term of the Supreme Court held in the
County of Cortland, at the Supreme Court
thereof, on the 7th day of
August, 2025.

PRESENT: HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

CITIZENS BANK, N.A.,

Plaintiff,

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

v.

INDEX NO.: EF24-156

JORDAN DAVID FISKE a/k/a JORDAN D.
FISKE a/k/a JORDAN FISKE, as Administrator
and possible distributee of the Estate of Kim Coe
a/k/a Kimberly Coe a/k/a Kim Stegink a/k/a
Kimberly A. Coe, deceased, late of the City of
Cortland, County of Cortland, State of New
York;
GINA COE and MICHAEL COE as possible
heirs and distributees of the Estate of Kim Coe
a/k/a Kimberly Coe a/k/a Kim Stegink a/k/a
Kimberly A. Coe, deceased, late of the City of
Cortland, County of Cortland, State of New
York;
GERALD LAWRENCE;
GARY STAUBER;
PEOPLE OF THE STATE OF NEW YORK;
UNITED STATES OF AMERICA; and
JACOB SARTWELL,

MORTGAGED PROPERTY: 32 Squires
Street, City of Cortland, County of
Cortland, State of New York 13045

SBL #: 96.24-01-50.000

MORTGAGE SERVICER: Citizens
Bank, N.A. d/b/a Citizens One Home
Loans

MORTGAGE SERVICER PHONE #:
800-234-6002

Defendants.

UPON the Summons, Complaint, and Notice of Pendency filed in this action on March 14,
2024, the Notice of Motion dated July 14, 2025, the affirmation by Matthew E. Minniefield, Esq.
dated July 14, 2025, the affirmation of merit and amount due by Latasha Toliver, who is a
Foreclosure Specialist of Citizens Bank, N.A., duly sworn to on March 4, 2025, together with the



2025-04026
08/20/2025 03:14:39 PM

COURT & TRUST
Brooke Kemak, County Clerk

exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by an attorney or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since all defendants were so served; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215 (g) (3) (iii); and

UPON proof that the non-appearing defendants are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Christopher P. Neville, Esq., dated June 16, 2025, showing the sum of \$108,868.06 due as of March 4, 2025, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Matthew E. Minniefield, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the

Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction[^] at Cortland County Courthouse 46 Greenbush Street, Cortland, NY by and under the direction of Christopher P. Neville, Esq., 287 Fox Road, Binghamton, NY 13905, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in The Cortland Standard; and it is further

[Pursuant to the terms of sale and foreclosure auction plan attached as Exhibit A] *MGM*

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable;

and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his/her IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in his/her IOLA account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible

for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$108,868.06 with interest at the note rate from March 4, 2025, until the date of entry of this Order, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs, Fees and Disbursements \$3,195.00 adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance: \$ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of

Man

entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid to the Cortland County Director of Finance by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against N/A, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to the following, provided that they do not render title unmarketable: any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; superior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in

the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 32 Squires Street, Cortland, New York 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *HGM*

~~Schedule A.~~

DATED: *August 20, 2025*
ENTER: *Cortland, New York*

MSML
HON. MARK G. MASLER, J.S.C.

Brooke Kemak



CJ-2025-01724

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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT:

COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

La Term
At Part 1 of the Supreme Court held
In the County of Cortland, at the
Courthouse thereof, on the 18th day
of July, 2025.

PRESENT: Hon. Mark G. Masler
JUSTICE OF THE SUPREME COURT

NBT BANK, NATIONAL ASSOCIATION,

Index No.: EF24-624

Plaintiff,

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

-against-

Assigned Judge:
Mark G. Masler, J.S.C.

KRISTEN ELIZABETH TURSHMAN;

Mortgaged Premises:
2861 Cincinnatus Road
Cincinnatus, NY 13040
SBL: 113.17-02-10.000

Defendant.

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 21ST day of October, 2024, the Notice of Motion dated June 10, 2025, the affirmation of Melissa H. Pugliese, Esq., the affidavit of merit and amount due by Jason Town, who is Assistant Vice President of NBT Bank, National Association, duly sworn to on January 31, 2025, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of defendants herein has been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by an attorney -OR- has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendant Kristen Elizabeth Turshman so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and



2025-04030
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COURT & TRUST
Brooke Kemak, County Clerk

UPON a referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Natalie B. Miner, Esq. dated May 29, 2025, showing the sum of \$83,762.08 due as of April 22, 2025 and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Burgess & Associates P.C. (Melissa H. Pugliese, Esq.), attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and ~~as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be performed to the terms of sale and foreclosure auction plan attached as Exhibit A sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse, Cortland ~~Norwich~~, New York, by and under the direction of Natalie B. Miner, Esq., 25 *MGM* South Main Street, PO Box 310, Homer, New York 13077, (607) 749-7296; who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is

disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiffs attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IDLA or escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

MGM

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision I of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said IDLA or escrow account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

MGM

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for

\$50,000.00 or more -OR- in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$83,762.08 with interest at the note rate from April 22, 2025 until date judgment is entered, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$ 1,745.40 adjudged to the Plaintiff
for costs and disbursements in this action (add if applicable, as taxed or calculated
by the Clerk and inserted herein), with interest at the statutory judgment rate from
the date of entry of this judgment;

No Additional Allowance: \$ _____ is hereby awarded to Plaintiff *NGM*
in addition to costs, with interest at the statutory judgment rate from the date of entry of
this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,353.50 is hereby awarded to Plaintiff
as reasonable legal fees herein, with interest at the statutory rate from the date of entry of
this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the
officer conducting the sale within five days after receipt in accordance with RPAPL
§ 1354(4) and in accordance with local County rules regarding Surplus Monies;
and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property,
or in the event that the rights of the purchasers at such sale and the terms of sale under this
judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is
filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at
said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the
property sold upon the payment to said Referee of the amounts specified in items marked "First",
"Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified
in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after
deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified
in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid
to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third," and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this Judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 2861 Cincinnatus Road, Cincinnatus, New York 13040.

DATED: August 10, 2025
Cortland, New York

ENTER:


HON. MARK G. MASLER
Supreme Court Justice





CJ-2025-01728

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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT:

COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Purchaser's Signature

Dated: _____

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tlogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At a term of the Supreme Court held in
the County of Cortland, at the
Courthouse thereof, on the 20th day
of August, 2025.

PRESENT: Hon. Mark G. Masler, Justice Presiding

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
CFCU COMMUNITY CREDIT UNION,

Plaintiff,

v.

DESIREE N. WILLIS f/k/a DESIREE N.
HYDE,

Defendant.

INDEX NO.: EF23-589

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:

3527 Kellogg Road
Cortland, NY 13045
SBL #: 97.04-01-14.000

-----X
UPON the Summons, Complaint, and Notice of Pendency filed in this action on the
25th day of October, 2023, the Notice of Motion dated December 13, 2024, the affirmation
by Samuel M. Blakley, Esq. dated December 13, 2024, the affirmation in support of
attorney's fees dated December 13, 2024, together with the exhibits annexed thereto, all
in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that the defendant herein has been duly served with the Summons
and Complaint, and has not served any answer to the Complaint or otherwise appeared,
nor has her time to do so extended; and it appearing that more than the legally required
number of days has elapsed since Defendant Desiree N. Willis f/k/a Desiree N. Hyde was
so served and/or appeared; and Plaintiff having established to the Court's satisfaction
that a judgment against defendant is warranted; and



2025-04031

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COURT & TRUST
Brooke Kemak, County Clerk

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3); and

UPON proof that non-appearing Defendant Desiree N. Willis f/k/a Desiree N. Hyde is not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of William J. Pomeroy, Esq. dated December 10, 2024, showing the **secured sum of \$65,155.92** due as of the ~~date of said Report~~ October 1, 2024 and that the mortgaged property may not be sold in parcels; and

UPON reading and filing the Report of William J. Pomeroy, Esq. dated December 10, 2024, showing the **unsecured sum of \$190,923.09** due as of the ~~date of said Report~~ October 1, 2024 that is **not secured** by the Mortgage; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Samuel M. Blakley, Esq., attorney for the Plaintiff, It is hereby

ORDERED, ADJUDGED, AND DECREED that the motion is granted; and It is further

ORDERED, ADJUDGED, AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and It is further

ORDERED, ADJUDGED, AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in

one parcel, in accordance with the Terms of Sale and Foreclosure Auction Plan annexed hereto, at a public auction at the **Cortland County Courthouse located at 46 Greenbush Street, Cortland, New York 13045** by and under the direction of **William J. Pomeroy, Esq. of P.O. Box 828, Cortland, New York 13045**, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in the **Cortland Standard**; and it is further

ORDERED, ADJUDGED, AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon

as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IRA or escrow account ~~(name of depository)~~ in his/her own name as **HGM** Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED, AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than

30 days after the date of such sale unless otherwise stipulated by all parties to the sale;
and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-l of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said IDA or escrow account ~~(name of depository)~~ *HGM*, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more. ~~FOR~~ *In the event a sale was cancelled or postponed,* *HGM*
Plaintiff shall compensate the Referee in the sum of \$ 250 for

each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2).

Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Secured Amount Due per Referee's Report: \$65,155.92 with interest at the present note rate of 14.00%, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of

this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 1,727 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 3,400 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting

the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED, AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED, AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against **Defendant Desiree N. Hyde n/k/a Desiree N. Willis** in accordance with RPAPL §1371 **only if permitted by law and her liability not discharged by bankruptcy**; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of

sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED, AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED, AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED, AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED, AND DECREED that the Plaintiff may make an application for Surplus Monies, if any, pursuant to RPAPL §1361 regarding those amounts due under the Note but not secured by the Mortgage; and it is further

ORDERED, ADJUDGED, AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED, AND DECREED that Plaintiff shall serve a copy of this

Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED, AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED, AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED, AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 3527 Kellogg Road in the Town of Cortlandville, County of Cortland, State of New York, Tax Map No. 97.04-01-14.000.

DATED: August ²⁰, 2025
Cortland, New York

ENTER:



HON. MARK G. MASLER
Supreme Court Justice



CJ-2025-01729
08/20/2025 03:33:54 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND.

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At Part _____ of the Supreme Court of the State of
New York, held in and for the County of
CORTLAND at the Courthouse thereof, 46
Greenbush Street, Suite 301, Cortland, NY 13045,
on the 7th day of July,
2025.

P R E S E N T: Hon. Julie A. Campbell, A.J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
WILMINGTON SAVINGS FUND SOCIETY,
FSB, NOT INDIVIDUALLY BUT SOLELY AS
TRUSTEE FOR FINANCE OF AMERICA
STRUCTURED SECURITIES ACQUISITION
TRUST 2018-HB,

Plaintiff(s),

v.

ROBERT W. FAIRCHILD, AS HEIR AND
DISTRIBUTE OF THE ESTATE OF JERRY
FAIRCHILD A/K/A JERRY F. FAIRCHILD;
SARA KELLY, AS HEIR AND DISTRIBUTE
OF THE ESTATE OF JERRY FAIRCHILD
A/K/A JERRY F. FAIRCHILD; UNKNOWN
HEIRS AND DISTRIBUTEES OF THE ESTATE
OF JERRY FAIRCHILD A/K/A JERRY F.
FAIRCHILD, and any and all persons unknown to
Plaintiff, claiming, or who may claim to have an
interest in, or general or specific lien upon the real
property described in this action; such unknown
persons being herein generally described and
intended to be included in the following
designation, namely: the wife, widow, husband,
widower, heirs at law, next of kin, descendants,
executors, administrators, devisees, legatees,
creditors, trustees, committees, lienors, and
assignees of such deceased, any and all persons
deriving interest in or lien upon, or title to said real
property by, through or under them, or either of
them, and their respective wives, widows,
husbands, widowers, heirs at law, next of kin,
descendants, executors, administrators, devisees,

INDEX NO.: EF18-420

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY: 6414
STEGE ROAD PREBLE, NY 13141

COUNTY: CORTLAND

SBL#: Section 37.00, Block 01, Lot
10.000

Servicer: Compu-Link Corporation
Servicer Telephone: (866) 446-0026



2025-03340

07/07/2025 01:14:23 PM

COURT & TRUST
Brooke Kemak, County Clerk

legatees, creditors, trustees, committees, lienors and assigns, all of whom and whose names, except as stated, are unknown to Plaintiff; UNKNOWN HEIRS AND DISTRIBUTEES OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD, and any and all persons unknown to Plaintiff, claiming, or who may claim to have an interest in, or general or specific lien upon the real property described in this action; such unknown persons being herein generally described and intended to be included in the following designation, namely: the wife, widow, husband, widower, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors, and assignees of such deceased, any and all persons deriving interest in or lien upon, or title to said real property by, through or under them, or either of them, and their respective wives, widows, husbands, widowers, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors and assigns, all of whom and whose names, except as stated, are unknown to Plaintiff; SECRETARY OF HOUSING AND URBAN DEVELOPMENT; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; UNITED STATES OF AMERICA BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD, FAIRCHILD,

Defendant(s).

-----X

UPON the Summons, Complaint and Notice of Pendency filed in this action on April 11, 2018, the subsequent Notice of Pendency filed on June 17, 2021, the Supplemental Summons and Amended Notice of Pendency filed on November 18, 2021, the affirmation of Orit Avraham, Esq. the affidavit of merit and amount due by SAMANTHA BLOM who is ASSISTANT SECRETARY of COMPU-LINK CORPORATION DBA CELINK AS ATTORNEY IN FACT

FOR WILMINGTON SAVINGS FUND SOCIETY, FSB, NOT INDIVIDUALLY BUT SOLELY AS TRUSTEE FOR FINANCE OF AMERICA STRUCTURED SECURITIES ACQUISITION TRUST 2018-HB1, duly sworn to on November 03, 2022; together with the exhibits attached thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein have been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by their respective attorneys or have not served any answer to the Complaint or otherwise appeared, nor had their time to so do extended; and it appearing that more than the legally required number of days had elapsed since said Defendants ROBERT W. FAIRCHILD, SARA KELLY, UNKNOWN HEIRS AND DISTRIBUTEES OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD, SECRETARY OF HOUSING AND URBAN DEVELOPMENT, NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE and UNITED STATES OF AMERICA were so served and/or appeared; and Plaintiff having established to the court's satisfaction that judgment against the defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants ROBERT W. FAIRCHILD, SARA KELLY, UNKNOWN HEIRS AND DISTRIBUTEES OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD and NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE are not absent, in accordance with RPAPL §1321(2);

AND the court having held a mandatory settlement conference in this action pursuant to CPLR §3408.

A settlement was not reached and the case was released from the settlement conference part on November 18, 2021.

A Referee having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Patrick Michael Snyder, Esq., dated July 25, 2023, showing the sum of \$131,249.14 due as of November 02, 2022 and that the mortgaged property cannot be sold in parcels; and

UPON proof of due notice of this application upon all parties entitled to receive same, and upon all of the prior proceedings and papers filed herein; and

ORDERED that the Order Confirming Referee Report and Judgment of Foreclosure and Sale dated January 26, 2024 is hereby resettled; and it is further

ORDERED that the motion is granted; without opposition and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint in this action and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction at the Cortland County Courthouse, 46 Greenbush Street, Cortland,^{New York} by and under the direction of Patrick Michael Snyder, Esq., 70 Port Watson Street, Cortland, NY 13045 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his IOLA account at Tompkins Trust in his/~~her~~ own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at

the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in his IOLA account at Tompkins Trust and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), in the sum of \$750.00 in the event a sale was canceled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 200.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$131,249.14 with interest at the note rate due as of November 2, 2022, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 3,959.02 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

~~Additional Allowance: \$ _____ is hereby awarded to the Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;~~

Attorney Fees: \$ 3,500.00 is hereby awarded to the Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third" and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection

of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003 and §5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property on production of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale

without prior application to the Court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED ADJUDGED AND DECREED that the Notice of Pendency filed on June 17, 2021 be deemed filed, *nunc pro tunc*, to the date of the expiration of the Notice of Pendency on April 11, 2021; and it is further

ORDERED, ADJUDGED AND DECREED, that Janice Stafford, Esq., the Guardian Ad Litem and Military Attorney appointed herein, having filed his answer, consent, affidavit, and waiver, is hereby awarded the fee of \$ 250.00, payable to said Guardian Ad Litem upon transfer of title; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 6414 STEGER ROAD, PREBLE, NY 13141.

The legal description of the mortgaged property referred to herein is annexed hereto as

Schedule "A":

DATED: July 7, 2025

ENTER:

fla Cpt



Digitally signed by
Hon. Julie A. Campbell
7/7/2025, 11:11:09 AM

Hon. Julie A. Campbell, A.J.S.C.

Brooke Kemak



CJ-2025-01394

07/07/2025 01:14:23 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

SCHEDULE A – LEGAL DESCRIPTION

ALL THAT TRACT OR PARCEL OF LAND, SITUATE IN THE TOWN OF PREBLE, COUNTY OF CORTLAND AND STATE OF NEW YORK, BEING PART OF LOT 96 AND 97 IN SAID TOWN, BOUNDED AND DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT IN THE WESTERLY BOUNDARY LINE OF N.Y.S. ROUTE 281 WHICH POINT IS LOCATED NORTH 34 DEGREES 38 MINUTES 20 SECONDS WEST A DISTANCE OF 59.83 FEET FROM THE CENTERLINE OF SAID N.Y.S. ROUTE 281 MARKED BY A FOUND CONCRETE MONUMENT;

RUNNING THENCE NORTH 55 DEGREES 21 MINUTES 40 SECONDS EAST ALONG THE WESTERLY BOUNDARY LINE OF N.Y.S. ROUTE 281 A DISTANCE OF 439.43 FEET TO A POINT IN THE CENTERLINE OF CLARK ROAD;

RUNNING THENCE NORTH 83 DEGREES 34 MINUTES 01 SECONDS WEST MEASURED ALONG THE CENTERLINE OF THE RIGHT OF WAY OF CLARK ROAD A DISTANCE OF 394.69 FEET TO A POINT IN THE CENTERLINE OF STEGER ROAD;

RUNNING THENCE SOUTH 28 DEGREES 05 MINUTES 11 SECONDS WEST A RADIUS DISTANCE OF 730.00 FEET AND CHORD DISTANCE OF 80.15 FEET TO A POINT;

RUNNING THENCE SOUTH 31 DEGREES 14 MINUTES 00 SECONDS WEST A DISTANCE OF 130.00 FEET TO A POINT;

RUNNING THENCE SOUTH 70 DEGREES 23 MINUTES 36 SECONDS EAST A DISTANCE OF 129.30 FEET TO A POINT;

RUNNING THENCE SOUTH 10 DEGREES 02 MINUTES 27 SECONDS WEST A DISTANCE OF 91.71 FEET TO THE POINT OR PLACE OF BEGINNING.

ALSO, ALL THAT TRACT OR PARCEL OF LAND, SITUATE IN THE TOWN OF PREBLE, COUNTY OF CORTLAND AND STATE OF NEW YORK, BEING PART OF LOTS 96 AND 97 OF SAID TOWN, BOUNDED AND DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT IN THE SOUTHERN BOUNDARY LINE OF N.Y.S. ROUTE 281 WHICH POINT IS LOCATED WESTERLY A DISTANCE OF 502.52 FEET FROM THE INTERSECTION OF THE SOUTHERN BOUNDARY LINE OF N.Y.S. ROUTE 281 WITH THE INTERSECTION OF THE CENTERLINE OF CLARK ROAD;

RUNNING THENCE SOUTH 03 DEGREES 53 MINUTES 03 SECONDS WEST A DISTANCE OF 299.41 FEET TO A POINT MARKED BY A SET ROD/CAP;

RUNNING THENCE NORTH 86 DEGREES 06 MINUTES 54 SECONDS WEST A DISTANCE OF 150.00 FEET TO A POINT MARKED BY A SET ROD/CAP;

RUNNING THENCE NORTH 03 DEGREES 53 MINUTES 03 SECONDS EAST A DISTANCE OF 174.20 FEET TO A POINT IN THE SOUTHERN BOUNDARY LINE OF N.Y.S. ROUTE 281 MARKED BY A FOUND ROD/CAP;

RUNNING THENCE NORTH 54 DEGREES 01 MINUTE 55 MINUTES EAST MEASURED ALONG THE SOUTHERN BOUNDARY LINE OF N.Y.S. ROUTE 281 A DISTANCE OF 195.39 FEET TO THE POINT OR PLACE OF BEGINNING.

Index No.: EF18-420

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF CORTLAND

WILMINGTON SAVINGS FUND SOCIETY, FSB, NOT INDIVIDUALLY BUT SOLELY
AS TRUSTEE FOR FINANCE OF AMERICA STRUCTURED SECURITIES
ACQUISITION TRUST 2018-HB,

Plaintiff(s),

v.

ROBERT W. FAIRCHILD, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; SARA KELLY, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; UNKNOWN HEIRS AND DISTRIBUTEES OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD, and any and all persons unknown to Plaintiff, claiming, or who may claim to have an interest in, or general or specific lien upon the real property described in this action; such unknown persons being herein generally described and intended to be included in the following designation, namely: the wife, widow, husband, widower, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors, and assignees of such deceased, any and all persons deriving interest in or lien upon, or title to said real property by, through or under them, or either of them, and their respective wives, widows, husbands, widowers, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors and assigns, all of whom and whose names, except as stated, are unknown to Plaintiff; SECRETARY OF HOUSING AND URBAN DEVELOPMENT; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; UNITED STATES OF AMERICA BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD,

Defendant(s).

RESETTLED ORDER CONFIRMING REFEREE REPORT AND JUDGMENT OF FORECLOSURE AND SALE

Robertson, Anschutz, Schneid, Crane & Partners, PLLC

Attorneys for Plaintiff

900 Merchants Concourse, Suite 310

Westbury, NY 11590

Telephone: 516-280-7675

Index No.: EF18-420

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

WILMINGTON SAVINGS FUND SOCIETY, FSB, NOT INDIVIDUALLY BUT SOLELY AS
TRUSTEE FOR FINANCE OF AMERICA STRUCTURED SECURITIES ACQUISITION TRUST
2018-HB,

Plaintiff,

vs.

ROBERT W. FAIRCHILD, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; SARA KELLY, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD if living, and if she/he be dead, any and all persons unknown to plaintiff, claiming, or who may claim to have an interest in, or general or specific lien upon the real property described in this action; such unknown persons being herein generally described and intended to be included in the following designation, namely: the wife, widow, husband, widower, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors, and assignees of such deceased, any and all persons deriving interest in or lien upon, or title to said real property by, through or under them, or either of them, and their respective wives, widows, husbands, widowers, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors and assigns, all of whom and whose names, except as stated, are unknown to plaintiff; UNKNOWN HEIRS AND DISTRIBUTEES OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD, and any and all persons unknown to Plaintiff, claiming, or who may claim to have an interest in, or general or specific lien upon the real property described in this action; such unknown persons being herein generally described and intended to be included in the following designation, namely: the wife, widow, husband, widower, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors, and assignees of such deceased, any and all persons deriving interest in or lien upon, or title to said real property by, through or under them, or either of them, and their respective wives, widows, husbands, widowers, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors and assigns, all of whom and whose names, except as stated, are unknown to Plaintiff; SECRETARY OF HOUSING AND URBAN DEVELOPMENT; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; UNITED STATES OF AMERICA BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD,

Defendants.

**NOTICE OF MOTION TO RESETTLE AN ORDER CONFIRMING REFEREE REPORT &
JUDGMENT OF FORECLOSURE AND SALE**

Robertson, Anschutz, Schneid, Crane & Partners, PLLC
Attorneys for Plaintiff
900 Merchants Concourse, Suite 310
Westbury, New York 11590
Telephone: 516.280.7675



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

WILMINGTON SAVINGS FUND
SOCIETY, FSB, NOT INDIVIDUALLY BUT
SOLELY AS TRUSTEE FOR FINANCE OF
AMERICA STRUCTURED SECURITIES
ACQUISITION TRUST 2018-HB,

Index No. EF18-420

Plaintiff,

vs.

ROBERT W. FAIRCHILD, AS HEIR AND
DISTRIBUTE OF THE ESTATE OF JERRY
FAIRCHILD A/K/A JERRY F. FAIRCHILD; SARA
KELLY, AS HEIR AND DISTRIBUTE OF THE
ESTATE OF JERRY FAIRCHILD A/K/A JERRY F.
FAIRCHILD if living, and if she/he be dead, any and all
persons unknown to plaintiff, claiming, or who may claim
to have an interest in, or general or specific lien upon the
real property described in this action; such unknown
persons being herein generally described and intended to
be included in the following designation, namely: the wife,
widow, husband, widower, heirs at law, next of kin,
descendants, executors, administrators, devisees, legatees,
creditors, trustees, committees, lienors, and assignees of
such deceased, any and all persons deriving interest in or
lien upon, or title to said real property by, through or under
them, or either of them, and their respective wives, widows,
husbands, widowers, heirs at law, next of kin, descendants,
executors, administrators, devisees, legatees, creditors,
trustees, committees, lienors and assigns, all of whom and
whose names, except as stated, are unknown to plaintiff;
UNKNOWN HEIRS AND DISTRIBUTEES OF THE
ESTATE OF JERRY FAIRCHILD A/K/A JERRY F.
FAIRCHILD, and any and all persons unknown to
Plaintiff, claiming, or who may claim to have an interest in,
or general or specific lien upon the real property described
in this action; such unknown persons being herein
generally described and intended to be included in the
following designation, namely: the wife, widow, husband,
widower, heirs at law, next of kin, descendants, executors,
administrators, devisees, legatees, creditors, trustees,
committees, lienors, and assignees of such deceased, any
and all persons deriving interest in or lien upon, or title to
said real property by, through or under them, or either of

At Part 1a Term of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 28th day of
July, 2025.

**PRESENT: Hon. Mark G Masler, J.S.C.
JUSTICE OF THE SUPREME COURT**

Lakeview Loan Servicing, LLC,

Plaintiff(s),

v.

**Michael A. Grossi; Workers' Compensation Board of the
State of New York; Village of Marathon; Cody "Doe",**

Defendant(s).

INDEX NO. EF23-464

**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE**

**MORTGAGED PROPERTY:
2 Mill Street
Marathon, NY 13803**

**SBL #: Section 157.20 Block
01 Lot 28.000**

**Mortgage Servicer: Mr.
Cooper**

**Mortgage Servicer Phone #:
(888) 480-2432**

**UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 24th
day of August, 2023, on the Additional Notice of Pendency filed on the 4th day of January,
2024, the Notice of Motion dated June 30, 2025, the affirmation by Barbara Dunleavy, Esq. 1st June 30, 2025 the MGM
affidavit of merit and amount due by Belkis Carames, who is Assistant Secretary, duly sworn to
on October 24, 2024, together with the exhibits annexed thereto, all in support of Plaintiff's
motion for a Judgment of Foreclosure and Sale; and**

**UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally**



2025-04027

08/20/2025 03:19:45 PM

COURT & TRUST
Brooke Kemak, County Clerk

required number of days has elapsed since defendants, Michael A. Grossi, Village of Marathon, Workers' Compensation Board of the State of New York, and Cody "Doe", were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Michael A. Grossi and Village of Marathon and Cody "Doe", are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Kelly A. Damm Esq. dated January 29, 2025, showing the sum of \$72,241.07 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the

Pursuant to the terms of sale and foreclosure auction plan attached as exhibit A | MGM
 RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction^{at} the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of Kelly A. Damm, Esq., PO Box 256, Ithaca, NY 14851, 607-277-8601 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that, ~~except as set forth herein~~, the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, ~~except as set forth herein~~, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. ^{or escrow} account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. (of escrow) account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in

the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$72,241.07 with interest at the note rate from November 15, 2024 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

3,306.53

Costs and Disbursements: ~~\$3,281.53~~ adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance: \$_____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83; MG

Attorney Fees: \$2,900.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Michael A. Grossi, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith,
Plaintiff shall file a written report with the court within six months from the date of entry of this
judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of
sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is
further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith,
Plaintiff shall file a written report with the court within six months from the date of entry of this
judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 2 Mill Street, Marathon, NY 13803.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*

~~Schedule A.~~

ENTER

DATED:

August 20 2025
Cortland, New York

MGM

Hon. Mark G Masler, J.S.C.
Justice of the Supreme Court

Brooke Kemak



CJ-2025-01725
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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

Attorney certification pursuant
to 22NYCRR §130-1.1-a
is affixed to inside cover.

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

La Tern
At Part of Supreme Court of the
State of New York held in and for the
County of CORTLAND at the
CORTLAND County Courthouse at
46 Greenbush Street, Cortland, NY
13045, on the 7th day
of August, 2025.

PRESENT: HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT
-----X
MOVEMENT MORTGAGE, LLC,

Plaintiff,

-against-

KARA M. NEUMAN,

Defendants.

-----X

Index No. EF23-184

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
7679 Highbridge Road
De Ruyter, NY 13052

SBL #: 12.00-04-03.000

Mortgage Servicer:
ServiceMac, LLC
Mortgage Service Phone Number:
844-778-2622

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 3rd
day of April, 2023, The Additional Notice of Pendency filed September 16, 2024, the Notice of
Motion dated July 9, 2025, the attorney affirmation by Monica G. Christie, Esq., the Affidavit of
Merit and Amount Due by Thomas Abballe who is a Vice President, duly sworn to on February 6,
2025, together with exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of
Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons

23-000028-01/NEUMAN

and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendant, KARA M. NEUMAN was so served; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted, and

UPON the affidavit of mailing reflecting compliance with CPLR § 3215(g)(3)(iii); and

UPON proof that non-appearing defendant, KARA M. NEUMAN is not absent, in accordance with RPAPL §1321(2) and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Donald C. Armstrong, Esq. dated March 11, 2025, showing the sum of \$98,220.47 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to received same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Monica G. Christie, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted, and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the
23-000028-01/NEUMAN

Mem

[the terms of sale and foreclosure auction plan attached as Exhibit A]
Cortland County Courthouse pursuant to , by and under the MGM
 direction of Donald C. Armstrong, Esq., 16 Tompkins Street, Cortland, NY 13045, (607) 756-
7501, who is hereby appointed Referee for that purpose; that said Referee give public notice of the
 time and place in accordance with RPAPL § 231 in
The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

~~**ORDERED, ADJUDGED AND DECREED** that by accepting this appointment, the Referee certifies that they will comply with this court's rules and procedures regarding remote bidding, including, but not limited to the ability to accept wire transfers. If the Referee is unwilling or unable to comply with such provisions, the Referee shall notify the court and Plaintiff's Counsel immediately and the court may *sua sponte* substitute the Referee without further motion practice; and it is further.~~ MGM

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at

the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that, ~~except as set forth herein,~~ the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, ~~except as set forth herein,~~ in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

~~**ORDERED, ADJUDGED AND DECREED** that, if the highest bid offered is from a remote bidder (see Administrative Order 90/23), the Referee shall defer collection of the deposit so long as the remote bidding provider provides proof of sufficient funds thereof. If the deposit funds are not transferred into the designated trust account within (two) business days of the~~

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~~conclusion of the auction, the property shall be reoffered at auction; and it is further~~

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA ^(account) in his/her own name as Referee, in accordance with CPLR 2609, ~~or in the case of a remote bidder, the Referee may use an IOLA account in any bank authorized to transact business in New York State to hold the funds from the winning bid in trust; and it is further~~

MSM

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-l of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the

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date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said IOLA or escrow account, unless in the case of a successful remote bidder where the Referee may use an IOLA account in any bank authorized to transact business in New York State to hold the funds from the winning bid in trust, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay];

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the

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following:

Amount Due per Referee's Report: \$98,220.47 with interest at the note rate from January 31, 2025 until the entry of Judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,596.06 adjudged to the Plaintiff for costs and disbursements in this action (*add if applicable*, as taxed or calculated by the Clerk and inserted herein), with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance: \$ _____ is hereby awarded to Plaintiff *MAN* in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,975 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus

Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against KARA M. NEUMAN in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of

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the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale

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without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

15. Said property is commonly known as 7679 Highbridge Road, De Ruyter, NY 13052. This property includes a mobile home that has been affixed to the property via a Manufactured Home Affidavit of Affixation filed on June 17, 2021, under Instrument No. 2021-03302.

~~16. The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.~~ MGM

Dated: August 20, 2025
Cortland, New York

ENTER:

23-000028-01/NEUMAN

Brooke Kemak

MG ME
Hon. Mark G. Masler
Supreme Court Justice



CJ-2025-01726
08/20/2025 03:23:33 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v.

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At Part La Term of the Supreme Court of the State of New York, held in and for the County of CORTLAND at the Courthouse thereof, 46 Greenbush Suite 301 Cortland, NY 13045 on the 30th day of July, 2025.

P R E S E N T: Honorable Mark G. Masler, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

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PHH MORTGAGE CORPORATION,

INDEX NO.: EF22-263

Plaintiff,

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

vs.

DAVID MCCLOY A/K/A DAVID A. MCCLOY;
WILMINGTON SAVINGS FUND SOCIETY,
FSB, D/B/A CHRISTIANA TRUST AS TRUSTEE
FOR PNPMS TRUST II; CORTLAND COUNTY
DEPARTMENT OF SOCIAL SERVICES;
CORTLAND REGIONAL MEDICAL CENTER
INC; GUTHRIE MEDICAL GROUP, P.C.

MORTGAGED PROPERTY:
4322 MCCLOY ROAD CORTLAND,
NY 13045

COUNTY: CORTLAND

Section 74.00, Block 01, Lot 03.200

"JOHN DOE #1" through "JOHN DOE #12," the
last twelve names being fictitious and unknown to
plaintiff, the persons or parties intended being the
tenants, occupants, persons or corporations, if any,
having or claiming an interest in or lien upon the
premises described in the Complaint,
Defendant(s).

Servicer: PHH Mortgage Corporation
Servicer Telephone: 800-330-0423

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UPON the Summons, Complaint and Notice of Pendency filed in this action on June 24,
2022, the Notice of Motion dated June 22, 2025, the affirmation of Orit Avraham, Esq. the affidavit
of merit and amount due by Claribel Lopez who is Contract Management Coordinator of PHH

22-032547 - ArM


2025-04029
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COURT & TRUST
Brooke Kemak, County Clerk

Mortgage Corporation, duly sworn to on October 08, 2024; together with the exhibits attached thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein have been duly served with the Summons and Complaint in this action, and have not served any answer to the Complaint or otherwise appeared, nor had their time to so do extended; and Plaintiff having established to the court's satisfaction that judgment against the defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants are not absent, in accordance with RPAPL §1321(2);

A Referee having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Liam G.B. Murphy dated February 5, 2025, showing the sum of \$67540.60 due as of September 10, 2024 and that the mortgaged property cannot be sold in parcels; and

UPON proof of due notice of this application upon all parties entitled to receive same, and upon all of the prior proceedings and papers filed herein; and

ORDERED that the motion is granted; without opposition and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint in this action ~~and as hereafter described~~, or such part thereof as may be sufficient to

discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by pursuant to the terms of sale and foreclosure auction plan attached as Exhibit A the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction,

at the Cortland County Courthouse by and under the direction of Liam G.B. Murphy, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IOLA or escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said TDA or escrow account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance not to exceed \$750 unless the property sells for \$50,000 or more with CPLR 8003(b), ~~in the sum of~~ in the event a sale was canceled or postponed,

Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$67,540.60 with interest at the note rate from September 10, 2024, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,900 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

N. Additional Allowance: \$ is hereby awarded to the Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83; *MGM*

Attorney Fees: \$ 5,225 is hereby awarded to the Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL

§1354(4) and in accordance with local County rules regarding Surplus Monies; and
it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third" and "Fourth" above are insufficient to pay

Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against DAVID MCCLOY A/K/A DAVID A. MCCLOY in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003 and §5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property on production of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing

of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED, that Defendants captioned as "JOHN DOE #1" through "JOHN DOE #12", not having been served with copies of the Summons and Complaint, are neither necessary nor proper party defendants and their names are hereby stricken from the caption of this action; and it is further

ORDERED ADJUDGED AND DECREED that the caption shall be amended to reflect the removal said parties as follows:

ORDERED, that the caption shall read as follows:

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22-032547 - ArM

PHH MORTGAGE CORPORATION,

INDEX NO. EF22-263

Plaintiff,

v.

DAVID MCCLOY A/K/A DAVID A. MCCLOY;
WILMINGTON SAVINGS FUND SOCIETY, FSB,
D/B/A CHRISTIANA TRUST AS TRUSTEE FOR
PNPMS TRUST II; CORTLAND COUNTY
DEPARTMENT OF SOCIAL SERVICES; CORTLAND
REGIONAL MEDICAL CENTER INC; GUTHRIE
MEDICAL GROUP, P.C.;

Defendant(s).

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And it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

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ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 4322 MCCLOY ROAD, CORTLAND, NY 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *HGM*

~~Schedule "A".~~

DATED: *August 20 2025*
Cortland, New York

ENTER:

HGM
Hon. MARK G. MASLER,
J.S.C.

Brooke Kemak



CJ-2025-01727
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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24